

| Risk neutral          |                            |                       |                          |                        |                       |
|-----------------------|----------------------------|-----------------------|--------------------------|------------------------|-----------------------|
| Fee rule              | Meritorious-P<br>shortfall | Nonliable-D<br>burden | Liabe-D<br>excess burden | Gross outcome<br>error | Total<br>expenditures |
| American              | 0.2007                     | 0.1891                | 0.0321                   | 0.2822                 | 0.2068                |
| Trial Fee-Shifting    | 0.1781                     | 0.1829                | 0.0423                   | 0.2817                 | 0.1829                |
| Complete Fee-Shifting | 0.1920                     | 0.1611                | 0.0477                   | 0.2847                 | 0.1735                |
| Risk averse           |                            |                       |                          |                        |                       |
| Fee rule              | Meritorious-P<br>shortfall | Nonliable-D<br>burden | Liabe-D<br>excess burden | Gross outcome<br>error | Total<br>expenditures |
| American              | 0.2083                     | 0.2183                | 0.0193                   | 0.3351                 | 0.1830                |
| Trial Fee-Shifting    | 0.1764                     | 0.1654                | 0.0182                   | 0.2783                 | 0.1237                |
| Complete Fee-Shifting | 0.1982                     | 0.1956                | 0.0157                   | 0.3144                 | 0.1653                |